

HOUSE BILL 580

By Doggett

AN ACT to amend Tennessee Code Annotated, Title 8;
Title 39; Title 40 and Title 55, Chapter 10, relative
to pretrial release.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subdivision (a)(2) and substituting:

(2) "Qualified contract service provider" means a private or public entity that:

(A) Complies with the requirements of § 55-10-426(b)-(n);

(B) Has a written protocol with the issuing court that designates specific agencies to receive notifications and alerts as required by subsection (i); and

(C) Maintains or contracts with a company that provides a global positioning monitoring system that has a monitoring center that is staffed twenty-four (24) hours a day, seven (7) days a week and capable of immediately notifying the appropriate entities pursuant to the written protocol required under subdivision (a)(2)(B).

SECTION 2. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (e) and substituting:

(e) In addition to the information described by subsection (d), the arresting officer shall provide to an alleged victim who participates in a global positioning monitoring system under this section the name and telephone number of the appropriate emergency communications dispatch center and the arresting agency whom the victim may call to request immediate assistance if the defendant violates a condition of bond imposed under this section.

SECTION 3. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (i) and substituting:

(i) The magistrate who imposes a condition described by subsection (b) shall:

(1) Provide the entity that operates the global positioning monitoring system with contact information for the appropriate emergency communications dispatch center and the arresting agency; and

(2) Order the entity that operates the global positioning monitoring system to notify the appropriate entities pursuant to the written protocol required under subdivision (a)(2)(B).

SECTION 4. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (k) and substituting:

(k) Each county or municipality shall enter into a written agreement with one (1) or more qualified contract service providers.

SECTION 5. Tennessee Code Annotated, Section 40-11-152, is amended by deleting subsection (m) and substituting:

(m)

(1) A qualified contract service provider and the manufacturer or provider of the global positioning monitoring system device are not civilly or criminally liable for injuries or damages resulting from actions of the defendant when the actions of those entities and the entities' employees are in accordance with this section and done in good faith and without gross negligence or malice.

(2) A qualified contract service provider has no duty to notify the victim if a defendant violates a condition of bond imposed under this section.

(3) A magistrate, court, or law enforcement officer or agency shall not transfer or assign, by contract or otherwise, a duty assigned to the magistrate,

court, or law enforcement officer or agency to a qualified contract service provider or manufacturer or provider of the global positioning monitoring system.

SECTION 6. Tennessee Code Annotated, Section 40-11-152, is amended by adding the following as a new subsection:

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(1) If a defendant fails to pay the costs associated with operating the defendant's global positioning monitoring system device or the costs associated with providing the victim with a cellular device application or an electronic receptor device, then the qualified contract service provider shall notify the court in writing within five (5) days of the arrearage. The court shall immediately schedule a show cause hearing to be held within ten (10) days of the qualified contract service provider's notice to the court. At the show cause hearing, the court may:

(A) Revoke the defendant's bond and incarcerate the defendant;

(B) Allow the defendant to immediately bring the payments current and continue the defendant's pretrial release; or

(C)

(i) Determine whether alternative funding sources are available to pay the costs associated with operating the defendant's global positioning monitoring system device and the costs associated with providing the victim with a cellular device application or an electronic receptor device and, if alternative funding sources are available, order the alternative funding sources to pay the arrearages and future costs associated with operating the defendant's global positioning monitoring system

device and with providing the victim with a cellular device application or an electronic receptor device.

(ii) As used in this subdivision () (1)(C), unless a local government entity has established a fund for the purpose of paying the costs associated with a defendant's global positioning monitoring system device and the costs associated with providing a victim with a cellular device application or an electronic receptor device, "alternative funding sources" does not include the local sheriff's department or other local government entities.

(2) A qualified contract service provider is not required to continue to provide services pursuant to this section if the qualified contract service provider is not being compensated in accordance with the court's order for the costs associated with operating the defendant's global positioning monitoring system device or the costs associated with providing the victim with a cellular device application or an electronic receptor device.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.